

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents is **GRANTED**, subject to the limitations detailed above. Defendant shall serve further verified, code-compliant responses, without objection except as to specifically identified privileged material, to Special Interrogatories, Set One as detailed above within 20 days of this order. Sanctions of \$3,500 are imposed in favor of Plaintiff Fritchman against Mondelez Global, LLC. A proposed order was lodged and will be modified.

HILL, ET AL. VS. NELSON, ET AL.

CASE NUMBER: 25CV-0208635

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Kathleen Hill and her counsel on June 2, 2026 for their failure to timely serve pleadings on the defendants as required by CRC 3.110(b). The Complaint was filed on September 8, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over ten months and there is no Proof of Service of Summons on file. No written response to the Order to Show Cause was filed.

This matter first came on for hearing on July 13, 2026. Plaintiffs' counsel appeared and requested a continuance. The Court continued the hearing to today's date and directed counsel to file a declaration prior to today's hearing. No declaration has been filed. No proof of service of summons is on file.

With no sufficient excuse for the delay, the Court will impose sanctions in the amount of \$250 against Plaintiff and her counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, October 19, 2026, at 8:30 a.m. in Department 64.** The clerk is directed to issue an Order to Show Cause Re: Dismissal.

KUNS, ET AL. VS. ESTES-KING, ET AL.

CASE NUMBER: 26CV-0210292

Tentative Ruling Motion for Preliminary Injunction: Plaintiffs Ronald and Tove Kuns move for a preliminary injunction against Defendants Linda Estes-King, Mark Teal, and The Roles Company, Inc. pending trial and entry of final judgment in this action. Specifically, Plaintiffs seek to enjoin Defendant from interfering with Plaintiffs' use of a roadway and bridge and to require Defendants to unlock a gate which currently obstructs passage over what Plaintiffs refer to as the "Prescriptive Area" as detailed in the Verified Complaint.

Merits: California Code of Civil Procedure section 526(a) provides an injunction may be granted, *inter alia*, when it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually, or when it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. In considering whether to issue a preliminary injunction, a court evaluates two interrelated factors: the likelihood plaintiff will prevail on the merits at trial and the interim harm to plaintiff or defendant if the court denies or grants the preliminary injunction. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)